

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Company, Ltd., Samsung SDS Global SCL Asia Pacific PTE LTD,
and Samsung Electronics Logitech Company, Limited**

**RESPONDENT COSCO SHIPPING LINES CO., LTD.’S MOTION TO COMPEL
COMPLAINANT SAMSUNG ELECTRONICS AMERICA, INC. TO ANSWER
INTERROGATORIES AND RESPOND TO DOCUMENT REQUESTS**

Respondent COSCO Shipping Lines Co., Ltd., (“COSCO”), by and through its undersigned counsel, moves pursuant to the Federal Maritime Commission’s Rules of Practice and Procedure 46 C.F.R. §§ 502.145(b)(2), 502.146(b)(2)(i) and 502.150 for an order compelling Complainant Samsung Electronics America, Inc. (“SEA”) to answer, and produce documents requested in, COSCO’s Interrogatories and Requests for Production of Documents within three (3) days of an order granting this motion and declaring that SEA has waived any objections to COSCO’s discovery requests.

COSCO served interrogatories and requests for documents on June 18, 2025. As per the Commission’s rules, SEA was required to “serve its answers and any objections [to interrogatories] within 30 days” and “respond in writing within 30 days” to COSCO’s requests for production of documents. 46 C.F.R. §§ 502.145(b)(2), 502.146(b)(2)(i). SEA’s answers and responses were therefore due no later than July 18, 2025. Yet, SEA failed to comply.

COSCO, on the other hand, timely served SEA with responses and objections to SEA’s initial discovery requests and made a first production of documents on July 18, 2025.

Promptly advising SEA of its deficiency, and in accordance with 46 C.F.R. § 502.150(a)(2)(i), counsel for COSCO thereafter attempted to confer in good faith with counsel for SEA before filing this motion to obtain written answers and responses to the discovery requests by July 25, 2025. *See Exhibit A*, attached hereto. Nevertheless, SEA responded that it would refuse to provide *any* responses or produce any documents until August 18, 2025. To ensure that discovery and the scheduling of a hearing in this matter are not further delayed, and to ensure that COSCO is not prejudiced by its compliance, with and SEA's failure to comply, with discovery obligations, an order to compel SEA to comply with its obligations and finding SEA has waived its right to object to COSCO's discovery requests is necessary.

BACKGROUND

In accordance with the ALJ's June 2, 2025 Order granting the parties' Joint Motion to Modify Schedule (Doc. No. 41), COSCO and SEA exchanged initial discovery requests on June 18, 2025. *See* COSCO's First Set of Interrogatories and Requests for Production of Documents, attached hereto as **Exhibit B**. Those requests sought information and documents that are critical to COSCO's defense against SEA's remaining claims in this case, and in support of COSCO's counterclaim in this case.

On June 26, 2025, to allow additional time for an in-person mediation with the Commission's Consumer Affairs and Dispute Resolution Services ("CADRS") Office, the parties filed a Third Joint Motion for Enlargement of Time (Doc. No. 50) (the "Third Joint Motion") seeking a one-month extension of deadlines exclusively for: (i) completing document productions; (ii) filing a joint status report; (iii) completing fact depositions; (iv) beginning expert discovery; and (v) completing discovery. Third Joint Motion at 3. The Third Joint Motion also stated that the parties had exchanged initial discovery requests and that the enlargement of

time would not impact the briefing of issues in this matter, including “the motion to dismiss COSCO’s counterclaim and any actions regarding the third-party claims alleged by COSCO.” Third Joint Motion at 2.

On July 8, 2025, the ALJ granted the parties’ Third Joint Motion and extended by one month only the aforementioned deadlines. *See* Doc. No. 54 at 1 (the “July 8 Order”) (recognizing that “mediation typically does *not* stay a proceeding,” but “enlarging the dates by which discovery *milestones* will be reached”) (emphasis added). The July 8 Order also reminded the parties that “scheduling order is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril,” and that other impacts on deadlines “should be clearly addressed” by the parties when filing motions and making responses. *Id.* at 2.

Importantly, the parties did not seek an extension of the deadline for responding to the already-served discovery requests, and counsel for SEA neither requested nor received such an extension from undersigned counsel for COSCO at any point during the parties’ discussions related to the Third Joint Motion. As a result, COSCO timely served its responses and objections to SEA’s initial discovery requests, and COSCO made its first production of documents on July 18, 2025, within thirty (30) days of receiving SEA’s discovery requests, pursuant to the Commission’s Rules, 46 C.F.R. §§ 502.145(b)(2) and 502.146(b)(2)(i).

On July 21, 2025, undersigned counsel for COSCO sent a request to SEA’s counsel confirming that SEA had waived any objections and seeking answers to interrogatories and production of documents. In response to COSCO’s request, counsel for SEA refused to serve answers or produce any documents and stated that “[c]onsistent with the July 8 order, SEA will serve its responses by the extended deadline of August 18, 2025¹ if no settlement is reached

¹ As undersigned counsel for COSCO noted in response to counsel for SEA’s email, August 18 is not a discovery deadline contained within the July 8 Order. The July 8 Order lists

between the party representatives before then.” *See* Ex. A. As of the date of filing of this motion, SEA has failed—indeed refused—to provide written answers to COSCO’s discovery requests or to produce any documents.

ARGUMENT

COSCO’s motion to compel should be granted. Pursuant to the Commission’s Rules, a Presiding Officer may compel a response when “a party fails to answer an interrogatory” and/or “a party fails to respond that inspection will be permitted....” 46 C.F.R. § 502.150(a)(1). That is the case here—SEA failed to timely answer interrogatories and or respond to document requests, let alone begin producing documents. SEA’s answers to interrogatories and documents requested by COSCO are necessary for COSCO to prepare for the remainder of discovery and for the hearing in this matter.

When counsel for COSCO promptly sought to resolve this discovery dispute with SEA, SEA’s counsel expressed, for the first time, the erroneous opinion that the July 8 Order extended the 30-day deadline for responses to interrogatories and document requests. As a matter of fact and law, the July 8 Order did no such thing. The parties’ decision to engage in a mediation on July 18 did not stay proceedings in this matter. *See* July 8 Order at 1. Furthermore, the parties never sought an extension of time to respond to already-served discovery requests, and the July 8 Order stated that the motion “will not automatically stay other deadlines in the proceeding” which are not “clearly addressed in the motion....” July 8 Order at 2. As the parties represented to the Presiding Officer in the Third Joint Motion, the extension of specified discovery milestone deadlines does not otherwise affect the schedule for this matter.

August 14, 2025 as the deadline for “Document Production Completed, Fact Depositions Begin.” *See* July 8 Order at 1.

The relief requested by COSCO in this motion is necessary because SEA's continued failure to respond to COSCO's discovery requests will unduly prejudice COSCO by impeding fact gathering and review necessary to prepare for additional discovery, including, for example, the taking of depositions and discovery needed to defend against dispositive motions related to COSCO's counterclaim. *See e.g., S.J. v. Lendlease (US) Pub. P'ship Holdings, LLC*, No. 7:21-CV-188-D, 2022 WL 138689, at *2 (E.D.N.C. Jan. 13, 2022) (“[C]ourts should not stay discovery where discovery is still necessary to gather facts to defend against a dispositive motion.”).

Further, the Presiding Officer should enter an order confirming that SEA has waived any objections to COSCO's discovery requests due to its failure to timely answer and object. 46 C.F.R. § 502.145(b)(4). “It is well established that a failure to object to discovery requests within the time required constitutes a waiver of any objection.” *Richmark Corp. v. Timber Falling Consultants*, 959 F.2d 1468, 1473 (9th Cir.1992); *accord BancorpSouth Bank v. RWM Props. II, LLC*, No. 4:11CV373 JCH, 2012 WL 3939972, at *1 (E.D. Mo. Sept. 10, 2012); *Drutis v. Rand McNally & Co.*, 236 F.R.D. 325, 337 (E.D. Ky. 2006); *Blackmond v. UT Medical Group, Inc.*, No. 02–2809 Ma/V, 2003 WL 22385678, at *1 (W.D. Tenn. Sept. 17, 2003). Additionally, as discussed *supra*, counsel for SEA neither sought an extension of time from counsel for COSCO to respond to COSCO's discovery requests nor sought such relief in the parties' Third Joint Motion. As such, SEA waived any objections to COSCO's discovery requests. *See Greene v. Cracker Barrel Old Country Store, Inc.*, No. CIV 09-2110-A/P, 2009 WL 1885641, at *2 (W.D. Tenn. July 1, 2009) (plaintiff's failure to timely seek an extension from either defendant or the court constituted a waiver of her objections). Thus, SEA's failure to timely respond warrants a finding of waiver to any objections.

CONCLUSION

COSCO respectfully requests the Presiding Officer issue an order compelling SEA to answer COSCO's first set of interrogatories and documents requests, to begin producing documents within three (3) days of the order, and finding that SEA has waived any objections to COSCO's discovery requests served on June 18, 2025.

CERTIFICATION

Pursuant to the Commission's Rule 46 C.F.R. § 502.150(a)(2)(i), undersigned counsel for COSCO hereby certifies that it has attempted to confer in good faith with SEA, as demonstrated in Ex. A, in an effort to obtain compliance without the necessity of a motion but was unsuccessful.

Dated: July 29, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

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***Attorneys for Respondent,
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CERTIFICATE OF SERVICE

I certify that on the 29th day of July, 2025, a true and correct copy of the foregoing document, **Respondent COSCO's Motion to Compel Complainant SEA to Respond to Interrogatories and Document Requests**, was served by email on counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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